

		This is an access to justice issue. It does not appear from the record that this is a frivolous lawsuit. The statute relied upon for this motion is “intended to prevent out-of-state residents from filing frivolous lawsuits against California residents.” <i>Yao v. Superior Court</i> (2002) 104 Cal.App.4th 327, 331. Here, there is no such evidence an out-of-state resident is filing a frivolous lawsuit. For all of the foregoing reasons, Defendant’s motion is denied.
58	<i>Neach vs. Pacheco</i>	Motion to Compel Responses to Special Interrogatories and Requests for Production and Request for Monetary Sanctions The motion by Plaintiffs Brian Neach (“Neach”) and Molly J. Magnuson (collectively, “Plaintiffs”) for an order compelling Defendant Rodric Anthony Pacheco (“Pacheco”) to serve verified Code-compliant responses, without objections, to Neach’s special interrogatories, set two, and Neach’s requests for production, set three, and compelling Defendant Pacheco and Neach, P.C. (“Law Firm”) to serve verified Code-compliant responses without objections to Neach’s special interrogatories, set two, and Neach’s requests for production, set two, is granted. The Court declines to consider Plaintiffs’ reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, Defendants waived “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the

	interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (<i>See Leach v. Superior Court (Markum)</i> (1980) 111 Cal.App.3d 902, 905-906.) A propounding party may move for an order compelling responses to a demand for inspection at any time “[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response.” (Code Civ. Proc., § 2031.300, subd. (b).) By failing to serve timely responses, Defendant waived “any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).” (Code Civ. Proc., § 2031.300, subd. (a).) There is no dispute the discovery at issue was electronically served on Defendants and that Defendants have not served any responses. (Neach Decl., ¶¶ 2-4, Exhibits 1, 2, 3, and 4; Opposition, 2:5-8 and 26-28, 3:1-2, 6-8, and 22-23; Rocha Decl., ¶¶ 5 and 6.) Although not required, Plaintiffs attempted to resolve this informally, but Defendants did not respond to any of Plaintiffs’ attempts to obtain responses without resorting to the Court. (<i>Id.</i>, ¶¶ 5-7, Exhibits 5 and 6.) Plaintiff’s motion is granted. Pacheco and Law Firm shall each serve their verified, Code-compliant responses, without objection to these written discovery requests within 15 days. Defendants did not show Defendants acted with substantial justification or that the impositions of sanctions would be unjust. Defendants shall pay
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		monetary sanctions in the amount of \$2,400 to Law Offices of Brian Neach within 30 days. (Code Civ. Proc., §§ 2030.290, subd. (c) and 2031.300, subd. (c).) Plaintiffs shall give notice.
59	<i>U.S. Bank National Association vs. Best Time Logistics Inc</i>	On the motion of the Law Office of Mandeep S. Rupal, by Mandeep Rupal, counsel of record for defendant Best Time Logistics Inc. for an order relieving as counsel for Defendant, the court will grant the motion if prior to the hearing counsel files a proof of service of the moving papers on defendants and a proof of service of a notice of continuance as to both defendants and the opposing party. Otherwise, the motion will be continued to a future date to be determined by the court. If the proofs of proper and timely service are filed, the court will amend the proposed order to show the next hearing date and will sign the proposed order as amended. After the court signs the order, counsel shall serve the signed order on Defendant and the other parties. Counsel will be relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed order upon Defendant and all other parties.
60	<i>Vasquez vs. American Honda Motor Company, Inc.</i>	Defendant American Honda Motor Company, Inc.'s motion to compel plaintiff Juanita Vasquez to appear for deposition pursuant to Code of Civil Procedure section 2025.450 is denied, except that Plaintiff is ordered to provide within 30 days of the notice of ruling, four alternative dates within the next 60 days for the Plaintiff's deposition.